

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002727

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MOHAMED TAKFAOUI	
and	
RESPONDENT: MAIRA CAROLINA MARTINEZ DE PAZ	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – RECONSIDERATION

RULING

Respondent/ Mother filed a motion for reconsideration on May 20, 2026. Mother requests that the Court reconsider the Findings and Order After Hearing (FOAH) entered May 14, 2026, which adopted recommendations offered by Marin Family Court Services (FCS) in its report of May 7, 2026.

Mother did not attend the interview with FCS. Moreover, Mother did not file a responsive declaration to the original Request for Order (RFO) filed by Petitioner/ Father on April 24, 2026. Father’s RFO sought sole legal custody and joint physical custody.

This Court’s FOAH adopted the FCS recommendation that Mother “should be compelled to participate in the FCS process so more information can be provided, and Samara’s needs can be considered more thoroughly.”

Accordingly, the Court (1) re-refers this matter to FCS and (2) ORDERS Mother to participate in interviews with FCS.

This matter will be continued for further consideration by this Court to August 20, 2026, at 9:00 am.

All existing orders relating to custody and visitation shall remain in effect.

SO ORDERED.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing.

Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.